



Notification Waiver Determination

AustralianSuper – Advanced Navigation

Acquisition	Advanced Navigation Pty. Ltd (AdNav), certain of AdNav's shareholders, and certain new investors, intend to enter into a sale and subscription deed (SSD). Under the SSD, AustralianSuper Pty Ltd as trustee for AustralianSuper (AustralianSuper), will indirectly (through AirTree Ventures Opportunity Fund 2021 Trusco Pty Ltd as trustee for the AirTree Ventures AS Co-investment Opportunity Fund 2021 Trust (Airtree)) acquire shares in AdNav and enter into a shareholders agreement in respect of AdNav (the Acquisition). Airtree applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	30 July 2026

Parties to the Acquisition	Airtree forms part of Airtree Ventures, a venture capital firm based in Sydney, Australia. Airtree Ventures primarily focuses on early-stage investments in technology startups across Australia and New Zealand. AustralianSuper is one of Australia's largest superannuation funds, managing over \$410 billion of retirement savings on behalf of over 3.6 million members (as of 31 December 2025). AustralianSuper is an industry superannuation fund and maintains a diverse global portfolio across a range of asset classes. It offers superannuation, investment, retirement, and insurance services. The target, AdNav, develops, manufactures and offers AI-powered navigation solutions, primarily for major defence contractors ('defence primes').
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the size of the interest in AdNav being acquired by AustralianSuper is small b. there is no horizontal overlap or vertical relationship between AustralianSuper (or its connected entities) and

	AdNav in the supply of AI powered navigation software in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act